

9:00 AM

Line 4

25-CIV-02821 BRENDON FARRELL VS. STEVE LEYDIKER, ET AL

BRENDON FARRELL
STEVE LEYDIKER

KURT E. WILSON
JOHN P GIRARDE

Defendant's Motion for Attorneys' Fees and Costs Pursuant to Code of Civil Procedure § 425.16(C)

TENTATIVE RULING:

Initially, the Court notes that Defendant has not provided the address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

The unopposed Motion for Attorney's Fees and Costs Pursuant to Code of Civil Procedure Section 425.16(c) (the "Motion"), brought by Defendant Steve Leydiker, is GRANTED.

Background

This Court has found that the Complaint alleges, without explanation and in a conclusory manner, that Defendant made unidentified false statements about Plaintiff to various individuals and entities, including the press. (Order Granting Defendant Steve Leydiker's Special Motion to Strike Plaintiff Brendon Farrell's Complaint, Etc., filed on November 5, 2025 (the "Order").) This Court granted Defendant's Special Motion to Strike (herein also called the "anti-SLAPP motion") in its entirety. (Order, 10:15.) Plaintiff appealed (Notice of Appeal, filed on December 22, 2025), and then filed an Abandonment of Appeal on February 9, 2026. The Court of Appeal dismissed the appeal for Appellant's failure to pay the required fee. (Remittitur, filed on May 27, 2026.)

Through his Motion for Attorney's Fees and Costs Pursuant to Code of Civil Procedure Section 425.16(c) (the "Motion"), Defendant seeks a mandatory award of attorney's fees of \$32,077.50 and costs of \$435.00, for the total amount of \$32,512.50, for having prevailed in his anti-SLAPP motion. (Code Civ. Proc., § 425.16, subd. (c)(1).)

Legal Analysis

A "prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (Code Civ. Proc., § 425.16(c)(1).) This award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The statute both discourages meritless lawsuits and compensates targets of SLAPP suits for the expense of defending their protected speech. (*Dove Audio, Inc. v. Rosenfeld, Meyer & Susman* (1996) 47 Cal.App.4th 777, 785; *Liu v. Moore* (1999) 69 Cal.App.4th 745, 750.) Because this Court granted Defendant's Anti SLAPP motion in full, he is the prevailing party and entitled to fees as a matter of law. (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 338.)

Attorney's fees awarded under § 425.16 include not only the time spent on the Anti SLAPP motion itself but also reasonable time spent preparing and defending the fee motion. (*Ketchum, supra*, 24 Cal.4th at p. 1141; *Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi* (2006) 141 Cal.App.4th 15, 21-22.)

California courts apply the “lodestar” approach to set fees under § 425.16(c): the number of hours reasonably expended multiplied by the reasonable hourly rate prevailing in the community for similar work. (*Ketchum, supra*, 24 Cal.4th at p. 1136.) The trial court may adjust the lodestar to reflect case complexity, skill displayed, and results achieved. (*Mann, supra*, 139 Cal.App.4th at p. 345.) The “reasonable market value of the attorney’s services is the measure of a reasonable hourly rate.” (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 640 fn. 31; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260.)

The Motion is timely. (Cal. Rules of Court, rule 3.1702(b)(1).)

Defendant prevailed on his anti-SLAPP motion. (Order, 10:15.) Thus, an award of his attorneys’ fees and costs is mandatory. (Code Civ. Proc., § 425.16, subd. (c)(1).) Further:

an award of fees may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16. [A]bsent circumstances rendering the award unjust, fees recoverable ... ordinarily include compensation for all hours reasonably spent, including those necessary to establish and defend the fee claim.

(*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1141 (*Ketchum*) (internal quotation and citation omitted).)

As to the level of detail of the time spent as set forth in Defendant’s counsel’s declaration (Girarde Decl., ¶¶ 5, 7, & 9), the Court of Appeal explains that, “Because time records are not required under California law ..., there is no required level of detail that counsel must achieve.” (*Syers Props. III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 699 (*Syers*) (citation omitted).) In *Syers*, each of the billing attorney’s declarations under penalty of perjury:

summarized his hours billed to defendants within several specific litigation categories, including the total hours spent in: “Fact investigation and general conferences and correspondence”; “Development of case analysis and strategy”; “Legal research”; “Expert and/or consultant work”; “Status reports to client and carrier”; “Draft pleadings and papers, and other case assessment and development”; “Settlement discussions and mediation”; “Written and document discovery”; “Party, percipient and expert depositions”; “Trial preparation and support, including witnesses and exhibit preparation and examinations”; “Trial motions and submissions”; “Court appearances, including trial”; and “Attorneys’ fee motion.”

(*Syers, supra*, 226 Cal.App.4th 691, 694-95.) These categories resemble those of the Girarde Declaration. Further, the *Syers* Court noted that:

The type of categorical breakout of time expended by each attorney and paralegal provided here has been specifically lauded by Hon. Vaughn Walker, former Chief

Judge of the United States District Court for the Northern District of California, as “an especially helpful compromise between reporting hours in the aggregate (which is easy to review, but lacks informative detail) and generating a complete line-by-line billing report (which offers great detail, but tends to obscure the forest for the trees).”

(*Syers, supra*, 226 Cal.App.4th 691, 700.)

Further, in affirming the trial Court’s award based on declarations under penalty of perjury, the *Syers* Court considered that, “Most importantly, the trial judge presided over the entire matter and was well able to evaluate whether the time expended by counsel in this case, given its complexity and other factors, was reasonable.” (*Syers, supra*, 226 Cal.App.4th 691, 700.) Here, while the instant case was initially assigned to Judge Finigan, the trial judge who presided over the anti-SLAPP motion itself and its litigation since then has been Judge Mau. Thus, the institutional memory of the details of the pertinent litigation is available to the Court.

The Court finds the billing rate of \$525.00 per hour for Mr. Girarde to be reasonable, as well as his time spent, and the costs claimed. The motion is thus GRANTED in full for an award of attorney’s fees of \$32,077.50 and costs of \$435.00 against Plaintiff.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-02823 BRENDON FARRELL VS. ARA JABAGCHOURIAN

BRENDON FARRELL
ARA JABAGCHOURIAN

KURT E. WILSON
STEVE LEYDIKER

Defendant's Motion for Attorneys' Fees and Costs Pursuant to Code of Civil Procedure § 425.16(C)

TENTATIVE RULING:

Defendant Ara Jabagchourian has moved for attorney's fees and costs incurred in his successful Special Motion to Strike (Anti-SLAPP) in this matter and for attorney's fees for the instant fee motion.

Plaintiff Brendon Farrell has not opposed this motion.

Defendant's unopposed Motion for Attorney's Fees and Costs is tentatively GRANTED, in the amount of \$38,311.50, conditioned upon Defendant e-filing prior to the hearing a proof of service reflecting that this motion was timely served. If Defendant is unable to submit a proper proof of service, then the tentative ruling will be to DENY for lack of service. California Rules of Court, rule 3.1300(c).

Background

On April 24, 2025, Plaintiff filed a Complaint alleging defamation, false light, and related claims against Defendant. On June 4, 2025, Defendant filed an Anti-SLAPP motion seeking to strike the Plaintiff's Complaint. On October 28, 2025, this Court granted Defendant's Anti-SLAPP motion, striking Plaintiff's Complaint in its entirety.

On November 20, 2025, Plaintiff filed a Motion for Reconsideration of the Court's order granting Defendant's Anti-SLAPP motion. On December 22, 2025, Plaintiff filed a Notice of Appeal of the Court's order on the Anti-SLAPP motion. Plaintiff then withdrew his Motion for Reconsideration on December 23, 2025. However, Plaintiff's appeal was never heard. On February 9, 2026, Plaintiff filed an Abandonment of Appeal. And on March 5, 2026, the First Appellate District of the Court of Appeal issued a Remittitur dismissing Plaintiff's appeal for failure to pay the statutory fee required by California Rules of Court, rule 8.100(b)(1) and failure to file a Civil Case Information Statement after notice was given by appellate court clerk.
